

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: August 27, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Palmer vs. Holmes, 23-01362888	(ROA 226) Plaintiff James Palmer ("Plaintiff" or "Mr. Palmer") will and hereby does move for an Order pursuant to CCP§ 2030.010 et. seq compelling Defendant Warren Holmes ("Defendant") to serve further, objection-free, code-compliant, verified responses to the first set of Requests for Production of Documents (the "RFPs") served on August 8, 2025, and to produce documents responsive to the RFPs. Mr. Palmer will further move this Court for monetary sanctions against Defendant pursuant to CCP sections 2023.010, 2023.030, and 2031.320. Mr. Palmer requests sanctions in the amount of \$13,755.50, representing reasonable attorneys' fees and costs incurred as a result of Defendant's

		failure to serve timely (or any) responses to the RFPs to Mr. Palmer. (ROA 230) Plaintiff James Palmer moves for an Order pursuant to CCP 2030.010 et. seq compelling Defendant Warren Holmes to serve further, objection-free, code-compliant, verified responses to the first set of Form Interrogatories (the "FROGs") served on August 8, 2025. Plaintiff will further move this Court for monetary sanctions against Defendant pursuant to CCP§§2023.010, 2023.030, and 2030.290. Mr. Palmer requests sanctions in the amount of \$10,729.50. Initially, the Court recalls that in its 7/2/2026 minute order (ROA 303) it stated, "...the Court notes that from October-December 2025 Plaintiff's counsel and Defendant attempted to work out a Stipulation and Protective Order with no resolution. (Decl. of Dhaliwal¶¶5-11.) Moreover, there are four more pending discovery motions on calendar in August 2026 and January 2027 (trial is 8/3/2026). The Court encourages the parties to continue their meet and confer efforts." To date, at least ten (10) discovery motions have been filed by the parties herein. These current motions, filed on 2/9/2026, are unopposed. Even so, 617 pages of documents have been filed in connection with these two motions. Notable, too, the parties could not agree on a basic protective order. (Dhaliwal Decl. ¶14.) The Unopposed Motions are granted. Failing to respond within the time limit waives most objections to the interrogatories (and RFPs), including claims of privilege and "work product" protection. [CCP § 2030.290(a); see <i>Leach v. Sup.Ct.</i> (Markum) (1980) 111 CA3d 902, 905-906.] Here, on August 8, 2025, Mr. Palmer served his first set of comprehensive written discovery (Dhaliwal Decl., ¶ 2, Exs. A-D.) Defendant's responses to the Discovery were due on September 9, 2025. Having received no responses, Mr. Palmer filed motions to compel the Discovery on October 1, 2025. (Id.) On October 9, 2025, after Mr. Palmer had already filed his Motions to Compel, Defendant served is "responses". To the extent the responses include objections, those objections have been waived.
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		Furthermore, as these motions are unopposed, Defendant failed to sustain his burden to establish whatever facts are necessary to justify the objection(s). While the parties argued over a protective order and privilege log, Plaintiff fails to sustain his burden to show why those protections are necessary. Sanctions are warranted pursuant to CCP§§ 2023.010, 2023.030, and 2031.320, 2030.290. However, \$24,485.00 for two discovery motions is overreaching. Court will allow 10 hours of time at \$450 an hour. Defendant to provide further, code compliant, verified responses, without objections to Form Rogs (Set 1) and RFPS (Set 1) and within 20 days. Defendant to produce documents in response thereto within 20 days. Defendant to pay sanctions in the amount of \$4500 within 20 days. <i>Plaintiff to give notice.</i>
101	Jimenez vs. Waste Management Collection and Recycling Inc., 24-01444106	Plaintiff SALVADOR JIMENEZ moves this Court for an order, pursuant to CCP§§ 2023.010–2023.040, 2025.230, 2025.450 2025.480, and 2031.310, compelling Defendant WASTE MANAGEMENT COLLECTION AND RECYCLING, INC. (“Defendant” or “WMCR”) to designate, prepare, and produce its Person Most Qualified (“PMQ”) for deposition and to produce documents, as follows: 1. To compel Defendant WMCR to designate, prepare, and produce one or more PMQ witnesses to testify regarding Matter Nos. 1 through 9 set forth in Plaintiff’s Notice of Deposition; 2. To compel Defendant WMCR to produce documents responsive to Demand Nos. 1 through 16 set forth in Plaintiff’s Notice of Deposition; and 3. For an order awarding monetary sanctions against Defendant and its attorneys of record, jointly and severally, in the amount of \$5,330.00, for their misuse of the discovery process. Initially, CCP § 2025.450(b)(2) requires, “The motion shall be accompanied by a meet and confer declaration under Section 2016.040....” Specifically, CCP § 2016.040(a) provides, “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”